a) The applicants knew of or ought to have discovered their claim against the respondents by 2015 or 2016

37. The applicants filed their notice of application in court against the AMF Respondents on February 7, 2020. We submit the applicants knew of or ought to have discovered their claim against the AMF Respondents more than two years prior to that, i.e. prior to February 7, 2018.

38. There are numerous instances throughout the evidence filed on the record to date that show the applicants knew or ought to have known about their claim against the AMF Respondents, summarized as follows:

- By April 9, 2013, the applicants were aware that Mr. Boucher was no longer the president of "AFL" and that Mr. Boudreau, his business partner, was.

- By October 22, 2015, the applicants were aware that the defendant company to the 2010 Action was no longer carrying on business under the name AFL Tank Manufacturing Ltd., and that the corporate entity, 325 NSL, was carrying on business under that name instead, and that both Mr. Boucher and Mr. Boudreau were officers and directors of the new entity;

- By December 20, 2016, the applicants were aware that Mr. Boucher was no longer involved with Arichat Metal and that 176 NSL may not have any assets upon which to recover, that Arichat Metal may possess the assets formerly owned by 176 NSL, and that 176 NSL may be "judgment proof".

39. In October 2015, then-counsel for Arichat Metal, Mr. Ripley, advised the applicants that the company now known as Arichat Metal was incorporated in 2010 with a business number of 3250250 Nova Scotia Limited. By 2015, it was carrying on business under the name AFL Tank Manufacturing Ltd. Mr. Ripley further advised that 176 NSL no longer bore the name AFL Tank Manufacturing Ltd. By virtue of receiving this information, which included the corporate profiles of the two companies discussed, the applicants were aware of facts which would plausibly support the inference that 176 NSL had transferred some or all of its assets to the new entity Arichat Metal. Therefore, by October 22, 2015, the applicants were aware of facts upon which they could have inferred liability on the